



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/14/2026 - 09:00 AM

08/04/2026

10:28 AM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

25-PRO-01447	IN THE MATTER OF THE AUGUSTA H. MCPHERSON REVOCABLE TRUST DATED MAY 6, 1999	RE: Petition for Relief for Undue Influence and Status of Accounting for the Augusta H. McPherson Revocable Trust
Line 8	Petitioner: Bailin, Lorraine Judith (MARTIN, JOHN C. FRAZEE, AMY E.) Decedent: McPherson, Augusta H. Respondent: Mordecai, Pamela Ruth (CUMMINS, JAMES R. KANDA, AYA)	Status Hearing

Tentative Ruling:

APPEARANCE ORDERED

The Court will address the following issues at the hearing:

POS filed by Mr. Nino for amended petition served electronically does not list the email address to which it was delivered. As such, the court does not accept it. However, there is a POS for delivery via mail of the amended petition to Respondent individually, and in her capacity as trustee of the McPherson Trust, reflecting a date of July 16, 2026. As such, Respondent Trustee of the McPherson Trust has 120 days from the legal date of service in which to comply with Judge Garratt's order to file and serve and accounting.

There is no filed copy of Respondent's declaration [although an unfiled copy is attached to Petitioner's "objection" filed 8/12/2026] as to when she began acting as trustee of the McPherson Trust. Respondent is to advise the court as to why the declaration was not filed with the court, as was ordered by Judge Garratt. The court reminds all parties that failure to comply with court orders is subject to sanctions and potential contempt.

As it relates to the aforementioned objection and request for evidentiary hearing, which Petitioner's counsel set for today's date, that is obviously not timely for what the Court deems as a new petition seeking relief. As such, the court is going to deny such request for hearing. But more significantly, a separate hearing on that discreet issue would not be an efficient use of court resources, as this is obviously a primary issue which can and should be addressed through discovery on the amended petition and at the time that any hearing on said amended petition would occur.

Pamela Mordecai, as trustee of the Fisher Trust, is ordered to appear and advise the court if she is representing herself, or if she has retained counsel.

Petitioner still needs to serve the Amended Petition on the Pamela Mordecai, as trustee of the Fisher Trust.



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26-PRO-00089	Guardianship of Sandra Luisiana Diaz Leiva	Continued from 07/01/26 Continued from 07/01/26
Line 9, 10	Petitioner: Diaz Leiva, Sandra Luisiana (SIDDIQI, SAFWAN) Ward: Diaz Leiva, Sandra Luisiana Proposed Guardian: Diaz Leiva, Herberth Leonel	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings

Tentative Ruling:

NO APPEARANCE

Hearing was CONTINUED to November 17, 2026 at 9:00 am via the probate email.

26-PRO-00255	In Re The Matter of: The Guandique Revocable Declaration of Trust	PETITION: 1. FOR SUSPENSION OF RESPONDENT EDWARD DRACKEY AS TRUSTEE OF THE ANA VILMA GUANDIQUE TRUST DATED FEBRUARY 7, 2021; ETC.
Line 11	Petitioner: Guandique, Enrique (PASTOR, NATHAN D.) Decedent: Guandique, Ana Vilma Respondent: Drackey, Edward (BOBOWSKI, PAMELA C) Claimant: BANK OF AMERICA, N.A.	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

Petition for Suspension is CONTINUED to January 7, 2027 at 9:00 am to be heard with the Petition of Trustee for Return of Trust property, and for status. Parties are ordered to file status reports ten (10) days before the next hearing.